STANDARD OPERATING PROCEDURE	G-7220

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **05/06/21**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE GENERAL	RESOURCES FOP CONTRACT THE RULES OF THE SARPY COUNTY MERIT COMMISSION.
SUBJECT TEMPORARY LIMITED DUTY	CROSS REFERENCE G-5900 OFF-DUTY EMPLOYMENT G-8300 FIREARMS TRAINING AND QUALIFICATION

I. Purpose:

The Purpose of this policy is to establish the guidelines for temporary limited duty (i.e. light duty) assignments.

II. Policy:

Temporary limited duty assignments, when available, may be made available to employees of the Sarpy County Sheriff's Office who: due to injury, illness, temporary disability, or pregnancy are temporarily unable to perform their regular duty assignments, but are capable of performing alternative duty assignments. It is the policy of the Sheriff's Office that eligible personnel are given a reasonable opportunity to work in a temporary limited duty assignment where available and consistent with this policy. All temporary limited duty assignments shall be coordinated by the Administration Division.

III. Procedures:

A. General Provisions:

1. It is the policy of the SCSO to identify a limited number of temporary assignments to both sworn and non-sworn members of this Office. Personnel may request these positions when they are unable to perform their assigned duties due to temporary injuries or a temporary physical condition.

2. Limited duty requests will be filled on a first come first served basis (this shall mean the first to provide the Administration Division with the Temporary Limited Duty Request Form as well as supporting Physician documentation approved by the Sheriff) with priority given to personnel who have been injured on duty.

3. Limited duty assignments may be limited to 90 calendar days for a non-work related injury per rolling calendar year (example: a broken arm from playing in a Volleyball league off duty).

a) Up to 180 calendar days per rolling calendar year may be requested for the above situation by submission of an extension request to the Administration Division to be approved by the Sheriff.

b) This type of limited duty status may not exceed 270 days in a rolling calendar year.

4. Limited duty may also be granted for a work-related injury (for example: injuries incurred while attempting to gain control of a suspect or uniquely related to the duties required in law enforcement situations. Such as a broken foot incurred while in foot pursuit of a suspect).

a) This type of limited duty may extend to 365 calendar days.

b) An extension may only be granted by the Sheriff or the Chief Deputy if compelling medical documentation is provided to indicate the employee would be able return to full duty in a reasonable amount of time.

5. An employee unable to perform his/her regular assigned duties and on authorized sick leave or injured on duty status in excess of 5 working days, may be required by the Sheriff or the Chief Deputy to return to work and perform in a limited duty capacity (provided there is documentation from a Physician evidencing the employee's ability to perform such limited duty).

6. Before returning to normal duty, an employee must submit a Physical Capacity Report (PCR) from the employee's Physician. In addition, an employee on limited duty status for a period of 10 working days (or longer) may be required to see the employer's Physician at the request of the Sheriff.

B. Limited Duty Assignments:

1. Five limited duty positions are available to sworn members of the SCSO and an additional four positions available to non-sworn (civilian) personnel assigned to the Juvenile Services Division. The positions available are as follows:

a) 1 Sworn-Road Patrol Aide

b) 1 Sworn-Support Services Front Desk Aide

c) 1 Sworn-Support Services Courts Unit Aide

d) 1 Sworn-Investigations Aide

e) Non-Sworn Juvenile Services-Master Control post (A, B, C, and D shifts) total 4 positions.

f) Sworn Deputies assigned to the Jail may be assigned to Master Control. Sworn staff not assigned to the Jail Division upon injury may not utilize Master Control after May 1, 2019. Total of 4 positions available in the Jail Division for Corrections staff (both sworn and non-sworn).

g) Under some circumstances, an Employee may perform his/her normal duties while on limited duty status. The Sheriff or Chief Deputy shall make the determination regarding a limited duty employee's ability to perform his/her normal duties. Example: A Support Staff member who injured an ankle and normal job duties entail input of information into a computer-desk job.

h) All limited duty requests completed after May 1, 2019 shall be in strict adherence to this policy.

2. The Sheriff may identify one or more additional limited duty positions to fit the needs of the SCSO. Positions will NOT be created arbitrarily to solely meet the needs of an employee's limited duty request. The addition of the position must be of an articulable benefit to SCSO operations (e.g. a one-time project with a time sensitive deadline).

a) Additional positions shall be considered temporary and may continue for as long as the operations needs of the SCSO justify the position.

b) Additional positions shall fall under the supervision of the respective Command of the Division in which the employee is assigned for limited duty.

3. Every effort shall be made to assign employees to positions consistent with their rank and pay classification. Supervisory or Command Personnel may be assigned to positions designated for personnel of lower rank or pay classifications. Employees shall retain the privileges of their rank but shall answer to the Supervisor to whom they are assigned with regard to work responsibilities and performance.

4. When an employee is granted limited duty status, he/she will be placed under the command of a Supervisor or Commander within the respective assigned Division.

a) The Captain of each respective Division shall identify an area within their respective command which would meet the physical restrictions of the personnel assigned and shall also benefit the operations of the SCSO.

b) The selection of an assignment shall be made by the Administration Division based upon an evaluation by the employee's personal physician (PCR) in the event of illness or off duty injury, or in association with NIRMA case management if the injury occurred on duty.

c) Every reasonable effort will be made to accommodate restrictions imposed by the employee's physician when limited assignments are made.

5. In the event that all limited duty positions are filled and an employee who has been injured on duty requests limited duty status, the following guidelines apply:

a) Every effort shall be made to accommodate injured on duty employees with limited duty status.

b) An employee who is assigned limited duty status with an "other-than-injured on duty" injury/illness shall be returned to sick leave status. This shall allow a position to become available for the employee who was injured on duty.

c) The employee selected for "return to sick leave status" shall be the employee who has been on limited duty status the longest.

d) Sworn personnel shall not "bump" a civilian employee from a limited duty position, nor will a civilian employee "bump" a sworn employee from a limited duty position.

C. Request Procedure

1. Employees who wish to request limited duty status must submit a Temporary Limited Duty Request Form to the Assistance Administrative Commander with a Physical Capacity Report or letter from their physician specifically identifying

any imposed restrictions and the estimated time frame for the employee's return to full duty status.

2. The employee may be required to submit to an independent medical examination.

a) The second opinion shall be from a physician designated by the Sheriff's Office or Human Resources.

b) If the second opinion is at odds with the first opinion, a third opinion may be required from a physician agreed upon by both the SCSO and the employee. The third opinion shall become the final opinion in which both parties shall be bound to honor.

c) The SCSO shall pay the costs of second and third opinions.

3. The Assistant Administrative Commander shall determine the availability of a temporary limited duty assignment by consulting the division Commanders.

4. The Assistant Administrative Commander shall notify the Sheriff or Chief Deputy regarding the request for temporary limited duty and the availability of an appropriate position.

a) The Sheriff or Chief Deputy shall have the final authority regarding the assignment to limited duty.

b) The Assistant Administrative Commander shall notify the employee regarding the Sheriff or Chief Deputy's decision.

c) If the employee's request was denied, the employee may reapply if his or her physical capacity changes.

d) If an application for limited duty is denied based upon unavailability of positions, the applications shall be kept on file with the Assistant Administrative Commander as a "wait list." It shall be the responsibility of the Employee to keep the Assistant Administrative Commander updated in any change in restrictions which may impact their wait listed request.

5. Limited duty assignments approved by the Sheriff or the Chief Deputy shall be coordinated by the Assistant Administrative Commander, to include the notification of transfer between divisions. Any changes to limited duty assignments must be approved by the Administration Division. The Assistant

Administrative Commander shall maintain the Temporary Limited Duty Assignment Request forms.

6. The Supervisor and division Commanders to whom the employee is assigned for limited duty shall be apprised by memorandum from Administration of the employee's work restrictions. The Supervisor/Commander must ensure the employee is not assigned any task which could conflict with the prescribed restrictions.

7. If an employee's work restrictions change while on limited duty, the employee shall have a licensed health care provider complete a new Physical Capacity Report. The new report shall be forwarded to the Assistant Administrative Commander for review and shall be maintained with the Temporary Limited Duty Assignment Request Form.

8. Prior to returning to his or her regular duty assignment; the employee must have a final Physical Capacity Report completed by a licensed health care provider. This final report shall be forwarded to the Assistant Administrative Commander who shall issue a memorandum to the employee and the employee's chain of command to release the employee to return to work without restrictions.

D. **Pregnancy:** No employee shall be required to disclose her pregnancy except in accordance with policy. Personnel are encouraged to disclose pregnancies as soon as the condition is verified in order to protect the mother and the child. All information relating to the pregnancy shall remain confidential.

1. At her discretion and at any point in the pregnancy, an employee may notify her Supervisor and Division Commander that she is pregnant. An employee shall immediately notify her Supervisor and Division Commander if at least one of the following conditions exists for the pregnancy:

a) The employee has been given physical restrictions or limitations by her physician that prohibits her from performing all aspects of her current assignment.

b) The employee requests any modification, exemption, or leave from her assigned duties.

c) The employee reaches the third trimester of her pregnancy.

2. Notification to the Division Commander shall be in memorandum form and shall include her anticipated due date and anticipated return to duty date (if

known). The Division Commander shall notify the Assistant Administrative Commander.

3. Pregnant employees shall be permitted to continue working her normal duty assignment until such time as a physician recommends that normal duties may be curtailed. At such time the pregnant employee may be eligible for temporary limited duty assignment as available and as appropriate to their physical capabilities and well-being. Pregnant employees shall follow the same procedure for a limited duty request as outlined above.

E. Restrictions:

1. Employees working under the Temporary Limited Duty Policy shall be considered non-essential working employees. As such, unless otherwise approved by the Sheriff or the Chief Deputy, employees on limited duty status shall not work holidays and/or work overtime.

2. Participation in training that requires physical performance objectives shall require approval from the Sheriff or the Chief Deputy, who may require additional written approval from the employee's physician.

3. Employees assigned to limited duty will wear professional business attire as specified in the civilian and sworn non-uniform plain clothes policy.

4. Sworn Deputies on limited duty shall not publicly display equipment, including firearms, symbols, or other markings that may identify him or her to the public as a law enforcement officer. They shall carry law enforcement credentials in the same manner as sworn staff working in an undercover capacity.

5. A Sworn employee assigned to limited duty shall not drive a marked unit.

6. A Sworn employee assigned to limited duty is prohibited from working outside employment where the outside employment is associated with the employee's positions as a Deputy Sheriff and may require law enforcement action.